

11. 9:00 AM CASE NUMBER: MSC15-01952
CASE NAME: MCGUIRE VS BRENKLE
***HEARING ON MOTION IN RE: FOR ORDER AWARDING ATTORNEY'S FEES**
FILED BY: MCGUIRE, FRANK J
TENTATIVE RULING:

The court continues this matter on its own motion to Friday, May 8, 2026 at 9:00 a.m.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
TENTATIVE RULING:

Court notes notices were sent to potential claimants in advance of January 9, 2026 and no responses were received. The court ordered notices resent for the hearing date of April 10, 2026 at 9:00 a.m., and no responses were received. Some of the notices sent have been returned to the court undelivered.

Pursuant to the Unclaimed Property Law, the Court orders the transfer of unclaimed surplus funds previously submitted to the court on December 13, 1012, in the amount of **\$729,482.90** plus interest to the State Controller's Office.

The Clerk is directed to notice all parties and transmit a copy of this order to Financial Services of Contra Costa Superior Court.

13. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
***HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**
FILED BY: DEBRO, KARL
TENTATIVE RULING:

Petitioner Karl Debro filed a petition for writ of mandate under Code of Civil Procedure §§ 1094.5 and 1085, along with a cause of action for declaratory relief, against Respondents Contra Costa Community College District and the

Governing Board of the Contra Costa Community College District (hereafter “Respondents” or the “District”).

A. Background

Petitioner was employed at the Contra Costa Community College District from 2008 to 2020 (Pet. ¶¶ 6, 26.) In July 2012 Petitioner was promoted to Academic Student Services Manager and Director of Gateway to College. (Pet. ¶6.) In October 2019, Respondents received complaints from two of Petitioner’s subordinates, Kerry Sciacqua and Linda Johnson. (Pet. ¶17.) In January 23, 2020, Kimia Sagarchi, an investigator and lawyer for the District, informed Petitioner that he was being investigated. (Pet. ¶19.) Petitioner was interviewed by Sagarchi on April 20 and 28, 2020. (Pet. ¶20.)

On June 16, 2020, Petitioner was told that the allegations against him had been sustained. (Pet. ¶21.) He was placed on administrative leave on July 16, 2020. (Pet. ¶22.) On October 26, 2020, Petitioner received a notice and statement of charges that there exists cause to dismiss an academic manager. (Pet. ¶23.) Petitioner requested a Skelly Hearing and submitted a response to the allegations. (Pet. ¶24.) Respondents sent an amended notice of charges on December 9, 2020. (Pet. ¶25.) The governing board voted to terminate Petitioner’s employment effective December 14, 2020. (Pet. ¶26.)

Respondent issued a second notice and statement of charges that there exists cause to dismiss an academic manager on December 16, 2022. (Pet. ¶27.) On February 21-24, 2023, there was an evidentiary hearing before an arbitrator. (Pet. ¶32; AR 1-319.) The hearing officer found several of the charges were substantiated and that there was sufficient evidence to constitute cause for Petitioner’s termination. (Pet. ¶33; AR 1088-1126.) Contra Costa Community College District adopted the findings on August 10, 2023. (Pet. ¶39.) This writ petition followed.

Petitioner is seeking writs of mandate under both Code of Civil Procedure §§ 1094.5, for an administrative writ, and Code of Civil Procedure §§ 1085, for a traditional writ.

B. Standard of Review

For the administrative writ, Code of Civil Procedure §§ 1094.5(b) & (c) provide the standard of review.

“The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” (Code of Civil Procedure § 1094.5(b).)

“Where it is claimed that the findings are not supported by the evidence, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence. In all other cases, abuse of discretion is established if the court determines that the findings are not supported by substantial evidence in the light of the whole record.” (Code of Civil Procedure § 1094.5(c).)

“In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 817.)

In reply, Petitioner cites to Education Code § 87682. That section states that on a petition for writ of mandate following administrative proceedings to dismiss a community college employee, the superior court exercises independent judgment on the evidence. (Ed. Code, § 87682.) Article 4, which includes sections 87660 to 87684 applies to community college faculty. (Ed. Code, § 87660.) Petitioner has not shown that he was faculty, nor that he had been tenured faculty prior to becoming an administrator. (See, *Ricasa v. Office of Administrative Hearings* (2018) 31 Cal.App.5th 262, 275.) Still, Respondent agrees that the Court should exercise its independent judgment here because

the Court is reviewing the decision to terminate Petitioner's employment. (Opposition 4:18-19.)

As to the traditional writ claim, "[a] writ of mandate under Code of Civil Procedure § 1085 is a method for compelling an agency to perform a legal duty." (*Association of Irrigated Residents v. San Joaquin Valley Unified Air Pollution Control Dist.* (2008) 168 Cal.App.4th 535, 542.) "The trial court's role in a traditional mandamus proceeding is a limited one. It must determine whether the agency's action was arbitrary, capricious, or without evidentiary support, and/or whether it failed to conform to the law. The trial court may not substitute its judgment for that of the agency or force the agency to exercise its discretion in a certain way." (*Id.* at 542-543.) "The reviewing court exercises independent judgment in determining with the agency's action was consistent with applicable law. (*Id.* at 543 (citations omitted).)

C. Evidentiary Issues

In an administrative writ, "extra-record evidence is admissible under this exception only in those rare instances in which (1) the evidence in question existed *before* the agency made its decision, and (2) it was not possible in the exercise of reasonable diligence to present this evidence to the agency *before* the decision was made so that it could be considered and included in the administrative record." (*Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 578.) "In the absence of a proper preliminary foundation showing that one of the exceptions noted in section 1094.5, subdivision (e) applies, it is error for the court to permit the record to be augmented. [Citation.] Determination of the question of whether one of the exceptions applies is within the discretion of the trial court, and the exercise of that discretion will not be disturbed unless it is manifestly abused. [Citation.]" (*Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.)

"In a traditional mandamus action, on the other hand, the court is not limited to review of the administrative record, but may receive additional evidence. [Citations.]" (*Western States Petroleum Assn., supra*, 9 Cal.4th at 578

578.)

Petitioner has included extra-record evidence. Respondent objects to this evidence as improper and that Petitioner did not file a motion to augment the record. The normal course is to file a separate motion to augment the record, however, the Court will consider the issue now.

Petitioner included a request for judicial notice of excerpts of Respondent's policy and procedure manuals and its vision statement, which are attached as exhibits 2 – 7 to Burton's declaration.

The attorney declaration also includes Petitioner's response to the statement of charges, submitted on December 1, 2020. (Burton dec. ex. 1.) Finally, Petitioner has included a declaration with additional facts and twelve exhibits attached to it.

For the traditional writ of mandate under § 1085, the Court accepts Petitioner's evidence and grants the requests for judicial notice.

For the administrative writ the Court grants the requests for judicial notice 4, 5 and 6, which are Respondent's policies. These policies are referenced in the administrative record. Further requests 4 and 5 were also included in the administrative record. The remaining requests for judicial notice are denied as they do not appear relevant to the administrative hearing.

The administrative hearing occurred in February 2023 with post-hearing briefs filed in April 2023. The Court uses April 28, 2023, as the cutoff date for whether information was available at the time of the administrative hearing. With the exception of exhibit A to Debro's declaration, the documents are dated prior to April 28, 2023. As to the remaining documents, however, Petitioner must show that it was not possible in the exercise of reasonable diligence to present this evidence to the agency *before* the decision was made so that it could be considered and included in the administrative record. Petitioner has not met this burden. These documents are communications between Petitioner or his attorney and Respondent or Respondent's employees. There has been no showing why these documents were not

included in the administrative hearing.

Therefore, as to Burton exhibit 1, Debro's declaration and exhibits A to L, the Court will not consider these as part of the administrative record.

D. Administrative Writ

The petition alleges the following violations, (1) Respondent's decision to adopt the findings of fact and conclusion of law in the Hearing Officer's Opinion and Recommendation is not supported by the weight of the evidence and (2) they proceeded without jurisdiction and/or in excess of jurisdiction.

1. The Second Amended Notice

Petitioner argues that the second amended statement of charges, dated December 6, 2022, is timed barred and proceeding on the second amended charge constituted a lack of jurisdiction or actions in excess of jurisdiction.

The District's Personnel Manual states that "No disciplinary actions shall be taken for any cause which arose prior to the employee becoming permanent nor for any cause which arose more than two (2) years preceding the date of the filing of the notice of cause, unless such cause was concealed or not disclosed by the employee when it could reasonably be assumed the employee should have disclosed the facts to the District. Disciplinary action taken shall be commensurate with the offense charged. (RJN 4: Contra Costa Community College District Management, Supervisory, and Confidential Employees Personnel Manual §§ 14.0, 14.6.)

Petitioner points to *Brown v. State Pers. Bd.* (1985) 166 Cal.App.3d 1151, 1164, which held that "[n]either section 89539 nor any other provision of law permits the amendment of the charging document after CSUS has taken its disciplinary action." (*Id.* at 1164; accord *Brooks v. State Pers. Bd.* (1990) 222 Cal.App.3d 1068, 1076.) Both *Brown* and *Brooks* addressed the rights of state university employees under Education Code § 89539, which does not apply to a community college employee.

Here, the amended notice was issued December 11, 2020. (AR 823.) The

second amended charges were filed December 6, 2022, more than two years later. (AR 488.) However, Respondent points out that they did not add anything to the second amended charges and instead only cleaned up the charges and removed some claims. (AR 2-3 (transcript 8:10-9:5).) Petitioner has not shown what the changes were between the first amended and second amended notices. Nothing in § 14.6 prevents the District from removing charges or factual allegations. Rather, § 14.6 operates to prevent new charges from being added more than two years after they occurred. There is no showing that the District added new causes for discipline. The Court finds that the District did not violate § 14.6.

2. Education Code §§ 87732 and 87734

Education Code § 87732 provides a list of reasons why a regular employee or academic employee can be dismissed. Section 87734 requires that if the reason for dismissal is unprofessional conduct or unsatisfactory performance the employee first be given a 90 days to improve performance.

Here, Respondent notified Petitioner of several reasons for his possible dismissal on June 16, 2020. (AR 411-418.) One month later, Respondent placed Petitioner on leave and thus, he was not given time to improve his performance. (AR1020 and 1092, 1142.) Thus, there is a possible violation of § 87734 here if substantial evidence only supports a dismissal for unprofessional conduct or unsatisfactory performance. Before reaching that question, however, the Court must first determine if sections 87732 and 87734 apply in this case.

Education Code § 87732 applies to “regular employee[s] or academic employee[s]”. Education Code § 72411.5 applies to administrators. It states that “In the absence of an express appointment or contract as provided in Section 72411, every administrator shall serve in his or her administrative assignment at the pleasure of the governing board.” Where there is an express appointment or contract that document will control. However, “[i]f the administrator has tenure as a faculty member, the dismissal of, and imposition of penalties for cause on, the administrator shall be in accordance with the provisions

applicable to faculty members.” (Education code § 72411.5.)

“[B]ased on our independent interpretation of section 72411, we conclude the trial court correctly found [petitioner] did not have either a statutory right or property right to his position as a community college administrator and therefore was not entitled to a writ of mandate directing District to reinstate him to his former position.” (*Agosto v. Board of Trustees of Grossmont-Cuyamaca Community College Dist.* (2010) 189 Cal.App.4th 330, 338.)

Here, the hearing officer referred to Petitioner’s position as “Academic Manager (Administrator)”. (AR 1091, 1124-25.) There were also references to the rights of an administrator in Petitioner’s exhibits and in his hearing briefs. (AR 409, 1025, 1186.) Respondent also referred to Petitioner as an administrator. (AR 1039, 1202.)

Petitioner argues that he should be classified as faculty, not an administrator because he is an academic administrator. Petitioner has not cited anything in the record that supports this argument. Within the record is a copy of the classification specification for Academic / Student Services Manager (AR 168 and 687-688.) The Court’s review of this document does not show that he was classified as faculty.

The Court finds that Petitioner was an administrator under § 72411 and thus, not a regular or academic employee under § 87732. Because Petitioner was an administrator, he has not shown that he had rights under § 87732. However, the parties argue over whether § 87732 was complied with and therefore the Court will address that issue.

a. Education Code § 87732

Petitioner argues that Respondent violated Education Code § 87732, which states that “No regular employee or academic employee shall be dismissed except for one or more of the following causes:

- (a) Immoral or unprofessional conduct.

- (b) Dishonesty.
- (c) Unsatisfactory performance.
- (d) Evident unfitness for service.
- (e) Physical or mental condition that makes him or her unfit to instruct or associate with students.
- (f) Persistent violation of, or refusal to obey, the school laws of the state or reasonable regulations prescribed for the government of the community colleges by the board of governors or by the governing board of the community college district employing him or her.
- (g) Conviction of a felony or of any crime involving moral turpitude.
- (h) Conduct specified in Section 1028 of the Government Code [public employee cannot advocate to overthrow the Government].”

(Education Code § 87732.)

Petitioner also notes that the hearing officer did not reference § 87732 or make a specific finding that Petitioner had violated any of the provisions of Education Code § 87732. (AR 1125) But there has been no showing that such a specific finding is required.

Respondent argues that the violations found by the hearing officer meet Education Code § 87732(a), (b), (c), (d) and (f).

Both sides cite to § 87732 without providing any relevant case law. There is no discussion as to whether the hearing officer must make a specific finding regarding violations of § 87732. Thus, the Court will exercise its independent judgment to consider whether the facts support finding a violation under § 87732.

The Court finds that the first charge, giving Johnson a directive to falsify records, constitutes either unprofessional conduct or unsatisfactory performance. The Court also finds that the first charge is sufficient to support a

finding of dishonesty. The hearing officer noted that Johnson's refusal to follow the instructions meant that Petitioner was not guilty of falsifying records. (AR 1115.)

Here, the evidence shows that Petitioner asked Johnson to backdate Sciacqua's class to August 9 and mark all students, but one, as absent from August 9 to August 28. Petitioner knew that Sciacqua's class did not start before August 28. (AR 5-6, 160, 202-203, 205 [see the discussion in § 4(a) for more detailed citations].) This evidence is sufficient to show that Petitioner instructed Johnson to falsify records, which supports a finding of dishonesty.

Since the first charge is sufficient to support a finding of dishonesty, as well as, unprofessional conduct and/or unsatisfactory performance, there was sufficient basis to dismiss Petitioner.

b. Education Code § 87734

Education Code § 87734 does not apply here. First, as noted above, Petitioner is an administrator and not subject to the same protections as other employees. Community College Administrators do "not have either a statutory right or property right to his position as a community college administrator... ." (*Agosto, supra*, 189 Cal.App.4th 330, 338.)

Further, assuming § 87732 applies, there is evidence to support a finding that Petitioner was dismissed for dishonesty. Thus, there are grounds for dismissal beyond unprofessional conduct and unsatisfactory performance, and Respondent was not required to give Petitioner 90 days to improve his performance.

3. Section 59311 of Title 5 of the California Code of Regulations

Petitioner argues that Respondent failed to comply with 5 CCR 59311. Section 59320 states that community colleges must ensure their programs and activities are available without unlawful discrimination. That section requires that community colleges investigate complaints of unlawful discrimination. (5 C.C.R. § 59311.) Complaints involving unlawful discrimination in employment must be filed within 180 days. (5 C.C.R. § 59328(g).) The investigation of

complaints must be assigned to a neutral investigator. (5 C.C.R. § 59324.) A neutral investigator is “outside investigator or an internal investigator who is not in the chain of command of the respondent, not substantially implicated by the allegations in the complaint, and who is otherwise impartial.” (5 C.C.R. § 59311(d).) The investigator is required to conduct an impartial fact-finding investigation. (5 C.C.R. § 59334.)

Petitioner argues that the Respondent violated these sections in several ways: (1) the investigator was not neutral, (2) the investigation was not impartial, (3) the charges leveled against Petitioner exceeded the scope of the discrimination complaints and (4) many of the charges were outside the 180-day time period.

Petitioner has not shown that the investigator was not neutral or that the investigation was not impartial. Petitioner complains that the investigator was from the law firm representing Respondent in this proceeding, but cites no law showing such conduct is not allowed.

Petitioner has not shown that these sections of the CCRs limit an investigation to only consider discrimination claims. The fact that the charges against Petitioner went beyond discrimination does not violate this section.

Petitioner argues that the charges were not filed within 180-days, but these rules require complaints to be filed with the District within 180-days. These rules do not state that the District has 180-days to bring any charges against an employee. Further, the substantiated charges here did not relate discrimination and thus, it is unclear how the 180-day rule applies to non-discrimination claims.

In short, the Court is not convinced that Respondent violated these sections of the CCRS.

4. Findings of Fact and Conclusions of Law

Petitioner challenges the charges that the hearing officer found to be substantiated as not being supported by the evidence.

a. Falsifying Records

The hearing officer found that Petitioner's directive to Johnson regarding the start date of a class was an unlawful order which constituted gross misconduct. (AR 1115.)

In early September 2019, Johnson was preparing reports on attendance for August 2019. (AR 584.) The resources specialists Chuon showed all students were absent from her class from August 9 to August 28. (AR 581-582.) Resource specialist Rodriguez showed some students as present and some absent from August 9 to August 28. She also showed one of Sciacqua's students was present in her class from August 9 to August 28. (AR 585.) Resources specialists Sciacqua showed that she did not meet with students until August 28. (AR 587-588.)

According to Petitioner, Johnson asked Petitioner how to handle the situation. Petitioner told Johnson to backdate Sciacqua's class so it showed it started on August 9. (AR 22.)

At the hearing, Johnson explained that the average daily attendance (ADA) counts if a student is present in any class that day and the ADA is a key source of funding for the Gateway program. (AR 5 (transcript 19:6-20:5).) In order to get ADA for a student, they must be enrolled in 180 minutes of class per day, however, in 2019 some students were only enrolled in 90 minutes of class. This means the program would not receive ADA for those students. (AR 5-6 (transcript 20:2-22:10).)

Johnson brought this issue to Petitioner and according to Johnson, "the end result was that he asked me to build a class, populate it with these students beginning back on the first day of school, which I think that semester was the 9th of August, and put absences in for every day so that it would reflect that they were enrolled in two classes even though they never attended that one." (AR 5 (transcript 22:16-23).) Johnson's concern with this directive was that students were not enrolled in the class on August 9 and did not even know about it. (AR 6 (transcript 23:5-24:2).) Johnson believed this request was asking her to falsify records and she reported this issue to Chancellor Mojdeh

Mehdizadeh. (AR 6 (transcript 23:24-24:23).)

At the hearing, Petitioner explained that there was one student who was showing up to class in early August, but was not receiving credit because he was assigned to Sciacqua's class and she was not available until August 28. (AR 202 (transcript 589:5-589:19).) Petitioner was trying to find a way to give that student credit for attendance and thought it would not matter that to mark students absent who did not attend class (because no class was held). Petitioner did not think that the ADA would have been affected. (AR 202-203 (transcript 589:22-591:25).)

Mehdizadeh held a meeting with Johnson and Petitioner and ultimately determined that August 28 would be the start date for the class. (AR 160 (transcript 422:2-22); AR 205 (transcript 600:2).)

Petitioner argues that the law does not support a finding that he violated policy regarding the start date of the class. Education Code § 46180 and the MOU between Contra Costa College and West Contra Costa Unified School District states that student attendance would be no less than 180 minutes daily and no less than 180 days per academic year. (Education Code § 46180; AR 617.) Petitioner argue that under section 46180, as long as a student attends one class, they get credit for average daily attendance. Petitioner also argues that marking students absent who did not attend class does not affect the daily attendance averages.

The Court does not find Petitioner's arguments persuasive. The record shows that Petitioner asked his staff to backdate the start of a class and populate it with students who did not know that class had started. Education Code § 46180 may have been a motivating factor in Petitioner's decision, but the Court need not find that that section was in fact violated. Rather, the important fact here is that Petitioner told his subordinate to fabricate the start date of a class when the class had not in fact started. The hearing officer's finding on the improper directive to Johnson was supported by the weight of the evidence.

b. Employees Working Outside Classification

The hearing officer found that Petitioner violated Education Code § 88010 by having resource specialists perform teaching duties, which is outside their classification. (AR 1118.)

A community college district cannot require a classified employee to perform duties that are not reasonably related to the duties prescribed by the Governing Board for more than five days in a 15-day calendar period without additional compensation. (Ed. Code § 88010.)

Teaching is outside the scope of the Resource Specialists' job classification, which Debro conceded. (DAR 164, 196-194, 630-632.)

The evidence shows that Petitioner had the instructional assistants teach the leadership class the first semester. (AR 191-192 (Transcript 545:21-547:13).) When they first started teaching the leadership class, none of the instructional assistants complained that they were working outside of their class. (AR 192, (Transcript 549:3-5).) Petitioner informed his supervisors that the instructional assistants and/or resource assistants were teaching classes. (AR 192-193 (transcript 549:10-553:16.) Petitioner informed Mehdizadeh that the resource assistants were teaching leadership classes. (AR 183 (transcript 511:21-512:7); AR 192-193 (transcript 550:23-551:6).) Petitioner's supervisors did not inform him that he was required to follow education code provisions for secondary schools in the running of the Gateway program. (AR 193 (transcript 553:13-16).)

Later, during an external review of job descriptions (the Hay Study), petitioner told the Hay Group that the duties of the instructional assistants did not match their job descriptions. (AR 193 (transcript 554:7-14).) When Petitioner informed the Hay Group that the duties of the instructional assistants did not match the job descriptions, no one informed him that the descriptions had to match the jobs. (AR 193 (transcript 554:15-18).)

Petitioner instructed Resource Specialists Rodriguez, Chuon and Sciacqua to teach classes. (AR 34-35 (transcript 135:7-140:20 [Rodriguez]); AR 40 (transcript 157:21-163:23 [Chuon]); AR 75 (transcript 204:14-208:9); AR 87

(transcript 253:14-18 [Sciacqua]).) When Resource Specialists objected to performing teaching functions, Petitioner said he might need to eliminate their positions. (AR 087-088 (transcript 253:14-254:5).) Teaching classes is not part of the job description of resource specialists. (AR 745.)

The weight of the evidence shows that Petitioner directed resources specialists to teach classes, which was not part of their job description. This shows that Petitioner violated Education Code § 88010. The Court is somewhat troubled by the evidence showing that Petitioner repeatedly told his supervisors what he was doing and was never told that such conduct is improper. But Petitioner cites no law that would allow this Court to find that Petitioner is somehow excused from following the law because he informed his supervisors.

c. Violation of Union Rights

The hearing officer also found that Petitioner's refusal to allow Johnson an union representative during a meeting regarding the start date of the class, where he accused her of unprofessional behavior, was a *Weingarten* violation. (AR 1115-1116.) The hearing officer found that Petitioner improperly interfered with the right of union members to communicate with their union. (AR 1119.)

One of the main alleged actions was an email between Petitioner and his subordinate, Kerry Sciacqua. Petitioner sent an e-mail to his staff regarding attendance for intersession. (AR 671-672) On January 16, 2020, Sciacqua sent an e-mail to Petitioner requesting clarification of Petitioner's instructions and CCed her union representative and the college president. (AR 670-671) On January 17, 2020, Petitioner sent two e-mails to Sciacqua. In one e-mail, Petitioner thanked Sciacqua for her concern. (AR 667) In the other e-mail, Petitioner stated the following:

In my experience, when team members bring problems to the leader and/or team first rather than pushing them out to their boss, teams just work a lot better. The best time to escalate in my experience, is when problems are swept under the rug and/or ignored after earnest good-will efforts to get them addressed.

(AR 670.)

The interim president, Damon Bell, emailed Petitioner on January 31, 2020, explaining that a union member has the right to bring these sorts of concerns to their union and instructed Petitioner to stop making any comments that could be perceived as discouraging them from communicating with their union. (AR 156.)

In another incident, Petitioner asked Johnson to meet with him in his office. Johnson stated that she needed union representation, to which Petitioner responded, "That's fine, but right now I am mandating you to sit down." (AR 8 (transcript 32:5-13); AR 9 (transcript 33:25-34:12; AR 27-28, (transcript 105:16-110:7).) A few days later, Petitioner called Johnson into his office for another meeting but did not advise her to bring a union representative. (AR 266 (transcript 730:20-731:9).)

Petitioner argues that the meeting was not disciplinary and he testified that he did not believe it was disciplinary in nature. (AR 267 (transcript 731:8-9).). But there is evidence to the contrary. Petitioner wanted to talk to Johnson about her behavior and told her "Today when I tried to talk to you about the fact that this behavior has not improved, you said you were going home. I told you to stay and sit down. You agreed but said you would not say anything. Your behavior needs to improve immediately." (AR 9 (transcript 33:25-34:4).) Petitioner acknowledged that a supervisor talking to a subordinate about unprofessional behavior could be disciplinary in nature. (AR 266 (transcript 730:1-16).)

Petitioner's email to Sciacqua on January 17 can be fairly viewed as discouraging her from contacting her union representatives. Further, Petitioner's meetings with Johnson in September was disciplinary in nature. His communications showed that he was concerned about her behavior and that he wanted her to improve it immediately. Petitioner did not stop the first meeting so a union representative could attend, nor did he ensure that a union representative could attend their second meeting.

The Court finds that the weight of the evidence shows that Petitioner

improperly interfered with union members' rights to communicate with their union and have a union representative present during a potentially disciplinary meeting. Therefore, the evidence supports a finding that Petitioner interfered with union members' rights.

d. Johnson's Rights / Board Policy 2055

Finally, the hearing officer found that Appellant violated Board Policy 2055. (AR 1124)

Board Policy 2055 provides protections for employees to report suspected incidences of unlawful activities by District personnel without fear of retaliation. Here, the record shows that Johnson made a complaint against Petitioner on October 15, 2019. Petitioner prepared a draft evaluation of Johnson in late October or early November 2019. (AR 649-650, 165 (transcript 441:25-42:3).) That review rated Johnson as needs improvement. (AR 650.) Mehdizadeh explained that it was unusual to receive a review for the 2018-2019 school year (ending June 30) that late in the year. (AR 165 (transcript 442:11-21).) The record also shows that Johnson's previous review in 2015 was exceeds expectations. (AR 653-654.; AR 167 (transcript 447:6-23.)) Mehdizadeh raised a concern with Petitioner about the 2019 review appearing retaliatory and Petitioner offered to redo it. (AR 167 (transcript 449:5-8).)

Here, the record shows that Petitioner prepared a negative performance review of Johnson within one month of her submitting a complaint against him. His previous performance review of her was positive. The timing of a negative review is highly suggestive of retaliatory motive. Further, when questioned about the performance review, Petitioner offered to redo it rather than explain what conduct by Johnson led to such a review. The Court finds that the weight of the evidence supports a finding that Petitioner's performance review of Johnson was retaliatory.

e. Mismanagement of Finances

Petitioner did not provide a discussion on the hearing officer's finding that Petitioner was slightly negligent for his mismanagement of the fiscal

finances for the Gateway Program. (AR 1123) Therefore, Petitioner has not met his burden of showing the hearing officer's finding was incorrect.

E. Traditional Writ

In order to obtain a writ based upon an alleged violation of a ministerial duty, the petitioner must show ““(1) A clear, present and usually ministerial duty on the part of the respondent ... ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.”” [Citation.]” (CV *Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 278.)

Petitioner argues that Respondent had several ministerial duties that it failed to comply with. Although additional points were raised in the petition, the Court focuses on the issues discussed in the moving papers.

1. Performance Reviews

Petitioner argues that Education Code § 87663(i) required Respondents to establish and disseminate written evaluation procedures for administrators. And the Board Policy 2026 required that managers be evaluated on a regular basis. (RJN 6.) Board Policy 2026 states that “Managers, supervisors and confidential employees shall be evaluated on a regular basis. The purpose of the evaluation process is to help each manager, supervisor and confidential employee perfect skills in their respective areas. The evaluations will be completed according to the process and timelines indicated in the Governing Board approved Management, Supervisory and Confidential Employees Personnel Manual.” (RJN 6.)

Here, the Governing Board apparently did establish evaluation procedures for administrators, as seen in Board Policy 2026 and § 6 of the Management, Supervisor and confidential Employees Personnel Manual. (RJN 5.)

Petitioner never had a performance review, but Mehdizadeh met with him weekly. (AR 173 (transcript 471:9-15); 193 (transcript 553:13-16).) It is possible that the District violated Policy 2026 and/or § 6 of the Personnel Manual by failing to give Petitioner timely performance reviews. However, it is

Petitioner's burden to show a violation, and here he has not shown what sections were violated and where there is evidentiary support for that argument in the record.

Further, Respondent argues that Petitioner cannot obtain writ relief for any violation here as he is no longer an employee of the District. "Mandate will not lie unless the applicant for the writ has a present interest in the remedy he seeks and the respondent has a present duty to perform the acts the applicant seeks to compel. [Citations.] The petitioner's right and the respondent's duty are measured as of the time the proceeding is filed. [Citation.]" (*Lungren v. Deukmejian* (1988) 45 Cal.3d 727, 731-732.)b "To be entitled to relief, [petitioner] must show the District has a clear, present and ministerial duty to [rehire him] and that [he] has a clear, present and beneficial right to performance of that duty entitling [him] to a writ of mandate. [Citation.]" (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

In reply, Petitioner cites to *Achene v. Pierce Joint Unified School Dist.*, 176 Cal.App.4th 757 (2009). *Achene* held that a certificated probationary employee was entitled to performance reviews before being terminated for unsatisfactory performance and held that the district's order dismissing her during the school year for unsatisfactory performance is void. (*Id.* at 771.) *Achene* does not apply here because that case is based upon Education Code § 44664 and related sections dealing with certificated employees. As the court explained "Probationary employees may not be dismissed during the school year except for cause or unsatisfactory performance. (§ 44948.3; see also *Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 917.) For that reason [petitioner] had a fundamental vested interest in continuing her employment through the end of the 2006–2007 school year." (*Id.* at 766.) Here, by contrast, Petitioner did not have a fundamental vested interest in continuing his employment through the end of the school year.

The Court agrees with Respondent that Petitioner has not shown that he has a present right to performance reviews as he is no longer an employee of the district. Therefore, Petitioner's writ challenging the lack of regular

performance reviews fails.

2. PERB Decisions

Petitioner argues that Respondents had a ministerial duty to advise Petitioner of the charges against him prior to any investigative interview, *United Faculty of Contra Costa v. Contra Costa Community College District v. Contra Costa Community College District*, PERB Decision 2652 (Dated June 26, 2019), 2019 Cal. PERB LEXIS 98. Petitioner also argues that in *California School Employees Association & Its Capistrano Chapter 224 v. Capistrano United School District*, PERB Decision 2440 (June 30, 2015), 2015 Cal. PERB LEXIS 37, held that an employee is entitled to an attorney during an investigatory interview and here, the investigator did not allow Petitioner an attorney.

As an initial matter, the Court notes that Petitioner did not attach copies of the PERB decisions. The Court was able to locate both decisions on LEXIS although locating these decisions took more time than usual. In the future, the parties should provide copies of administrative decisions and/or provide a citation that is readily available through LEXIS (the Court's legal research provider).

As to the merits, both PERB decisions involve employees in a union. Respondent argues that Petitioner is not permitted to be in a union. (Gov. Code § 3543.4.) In reply, Petitioner argues that he was classified as faculty, without providing a supporting citation to the record. The Court need not decide whether Petitioner has a legal right to join a union, but instead finds that Petitioner has not shown that he was in fact part of a union and thus, the cited PERB decisions do not apply.

Petitioner has not shown that Respondent had a ministerial duty to advise Petitioner of the charges against him prior to any investigative interview and thus, Petitioner's traditional writ on this ground fails.

F. Conclusion

The Court finds that Petitioner has not met his burden on the writ claims

and therefore, **both writs are denied.**

The Court's decision disposes of the writ claims, but Petitioner also filed a cause of action for declaratory relief. **The Court sets a case management conference for August 7, 2026 at 8:30 a.m.** Petitioner shall notify the parties and the Court whether he intends to proceed with his declaratory relief claim no later than 10 days before the case management conference. All parties must file a Case Management Conference Statement no later than 10 days before August 7, 2026.

14. 9:00 AM CASE NUMBER: N26-0247

CASE NAME: CLAIM OF: CAMILA GARCIA NABOR

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

After careful examination of the Petition the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. Counsel must submit a Proposed Order Approving Compromise of Minor's Claim and a Proposed Order to Deposit Funds into a Blocked Account.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C23-03249

CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS

FILED BY: INSULATION GURU, INC DBA HVAC GURU

TENTATIVE RULING:

Defendant Insulation Guru's motion to Compel Further Responses to Requests for Admissions, filed December 1, 2025, is **denied** for lack of notice. The moving papers filed in this case listed a hearing date of "0/10/26" and the court file contains no amended notice to Plaintiff Aharon Poliker that the hearing date was April 10, 2026. Sanctions are denied.